

Calendar Line 5

Case Name: *Jonathan Maldonado v. Aniceto Alva*

Case No.: 21CV381717

This is a motion for attorney's fees by defendant Aniceto Alva. Plaintiff Jonathan Maldonado opposes and objects to the motion on the ground that his counsel was never properly served. Although there is a proof of service in the file (signed, somewhat unusually, by Alva's counsel himself), Maldonado's counsel submits a declaration stating that their office never received the moving papers, by either regular mail or email. Maldonado therefore requests a continuance "of at least 16 court days" to respond substantively to the motion.

The court has not received a timely reply from Alva.

Rather than try to resolve this factual disagreement between counsel, the court will CONTINUE this motion to July 29, 2025 at 9:00 a.m. in Department 10. Maldonado must file a substantive response to the motion by July 16, 2025.

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Calendar Line 6**Case Name:** *George Soliman v. Mohammed Bhuiyan et al.***Case No.:** 22CV397671

This is a motion for discretionary relief from default by defendant Mohammed Bhuiyan under Code of Civil Procedure section 473, subdivision (b). The court clerk entered default against Bhuiyan on October 31, 2022, but Bhuiyan did not file the present motion until February 20, 2025, nearly two years and four months later. At the time, he was not represented by counsel, so he is unable to bring a motion for mandatory relief based on attorney error. He is therefore constrained by the unforgiving language of the statute, which states that a motion for discretionary relief “shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).)

Plaintiff George Soliman opposes the motion, arguing that two years and four months is well past the statutory deadline. In addition, Soliman emphasizes that Bhuiyan was personally served with the summons and complaint on September 21, 2022, so his claim of lack of notice is not well taken.

The court has no choice but to agree that the motion is untimely, as the six-month time limit is jurisdictional. (See *Rappelyea v. Campbell* (1994) 8 Cal.4th 975, 980-981.) Although the court has the ability in certain circumstances to grant equitable relief upon a showing of extrinsic fraud or mistake (*ibid.*), Bhuiyan has not made such a showing here. In his memorandum, he argues that he “was served with partial and incomplete papers in a manner to confuse him” and “received false information that the matter had been dismissed,” but he does not present any evidence to back up these unexplained allegations—he does not specify exactly what was missing or confusing, and he does not identify how or from whom he received this false information (and exactly what the false information consisted of). (See Declaration of Mohammed Bhuiyan, ¶¶ 4-11.) He claims that he was not served with a request for entry of default, but there are proofs of service in the file, indicating service on October 24, 2022.

The motion is DENIED.

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